

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202200573595CUPA: Daniel Regan Jr. vs. CVUSD

09/22/2026 in Department 42

**Motion to Compel Second Physical Independent Medical Examination of Plaintiff with
Neurosurgeon**

Motion: Defendants’ Motion to Compel Second Physical Independent Medical Examination of Plaintiff with Neurosurgeon. (*Opposed*)

Tentative Ruling:

Defendants Conejo Valley Unified School District (CVUSD) and Tyler Lachman’s Motion to Compel Second Physical Independent Medical Examination of Plaintiff with Neurosurgeon is DENIED. Plaintiff to give notice of this Court’s ruling.

Applicable Law

A party seeking more than one physical examination under Code of Civil Procedure section 2032.220 must obtain leave of court. (Code Civ. Proc., 2032.310, subd. (a).) The court must grant such a motion “only for good cause shown.” (Code Civ. Proc., § 2032.320, subd. (a).)

The moving party bears the full burden of establishing good cause with specific, articulable facts. (See *Vinson v Superior Court* (1987) 43 Cal.3d 833, 840.)

“Good cause is established by facts that “ ‘appear in the record as a demonstrable reality.’ ” (*People v. Gates* (1987) 43 Cal.3d 1168, 1199, 240 [Citation].) Mere speculation, standing alone, will not suffice. (*Mendez v. Superior Court* (1988) 206 Cal.App.3d 557, 571 [Citation].)” (*Sporich v. Superior Ct.* (2000) 77 Cal. App. 4th 422, 428, 91 [addressing mental health examinations in sexual violent predator cases; negative treatment on other grounds].)

In *Shapira v. Superior Court* (1990) 224 Cal App 3d 1249 (*Shapira*) the court acknowledged that multiple IMEs are not categorically prohibited, but expressly held that: “Multiple examinations should not be ordered routinely; the good cause requirement will check the potential harassment of plaintiffs by repetitive examination.” (*Id.* at p. 1255.) Moreover, *Shapira* itself - and the federal authorities it cites - make clear that a stronger showing of good cause is required for a second examination than for the first. (See *Vopelak v. Williams* (N.D. Ohio 1967) 42 FRD 387, 389, cited with approval in *Shapira, supra*, 224 Cal App 3d at p. 1255).

Analysis

Defendants failed to establish good cause for the ordering of a second IME to be conducted by Defendants proposed second expert, Dr. King, a neurosurgeon. Plaintiff does not intend to call a neurosurgeon as an expert, and Defendant has been aware of Plaintiff’s complaints to neck and spine for some time. Those complaints appear to have been addressed by Dr. Illingsworth. The moving papers do not sufficiently articulate why examination by a neurosurgeon is warranted.